

1965 No. 3

A MEASURE passed by the National Assembly of the Church of England to authorise the approval of days of Special Observance; to enable a Bishop to authorise a Minister to dispense with the reading of Morning and Evening Prayer on certain days; to amend the rubrics at the beginning and end of the Communion Service in the Book of Common Prayer; and to extend the right to use the Book of Common Prayer in Latin to all universities and certain other places of learning.
[5th August 1965]

1.—(1) It shall be lawful for the Convocation of a Province to approve days of Special Observance in the Province.

Days of
Special
Observance.

(2) Subject to any directions of the Convocation of the Province it shall be lawful for the Ordinary to approve days of Special Observance in the Diocese or other the place of which he is the Ordinary.

(3) Any days of Special Observance approved in accordance with the provisions of this section shall be additional to the Feasts, Vigils, Fasts and Days of Abstinence set forth in the Book of Common Prayer.

2.—(1) Notwithstanding the provisions of section one of the Act of Uniformity 1662 and of the directions contained in the Book of Common Prayer, it shall be lawful for the Bishop of a Diocese, if satisfied that there is good reason so to do, to authorise the Minister of any Church within his Diocese to dispense with the reading within that Church of Morning and Evening Prayer or either of them on any Sunday, or upon Ash Wednesday or Good Friday, or other appointed Holy Day:

Dispensation
from holding
Services in
churches.
1662 c. 4.

Provided that before authorising the Minister of a Church to dispense with the reading within that Church of either Morning or Evening Prayer on Sundays for a period of more than three months the Bishop shall consult with the Parochial Church Council of that parish.

(2) In any case where the Bishop is required by the provisions of this section to consult with a Parochial Church Council such consultation shall be deemed to have duly taken place if the Bishop shall have consulted with two members of the Council nominated by the Council for the purpose.

**Amendments
of
Communion
rubrics.**

3.—(1) There shall be substituted for the second and third paragraphs of the Introductory Rubric to the Order for the Administration of the Lord's Supper or Holy Communion set forth in the Book of Common Prayer the following paragraph:—

“ If a Minister be persuaded that any person who presents himself to be a partaker of the Holy Communion ought not to be admitted thereunto by reason of malicious and open contention with his neighbours, or other grave and open sin without repentance, he shall give an account of the same to the Ordinary of the place, and therein obey his order and direction, but so as not to refuse the Sacrament to any person until in accordance with such order and direction he shall have called him and advertised him that in any wise he presume not to come to the Lord's Table; Provided that in case of grave and immediate scandal to the Congregation the Minister shall not admit such person, but shall give an account of the same to the Ordinary within seven days after at the latest and therein obey the order and direction given to him by the Ordinary; Provided also that before issuing his order and direction in relation to any such person the Ordinary shall afford to him an opportunity for interview.”

(2) In the rubric set out in the foregoing subsection the expression “ the Ordinary of the place ” or “ the Ordinary ”, includes in the case of the Ordinary being the Bishop of the Diocese and the see being vacant the Archbishop of the province or in the case of the Archbishopric being vacant or the vacant see being Canterbury or York the Archbishop of the other province.

(3) In the administration of the Lord's Supper or the Holy Communion it shall be lawful to use leavened or unleavened Bread, and the fifth paragraph of the Rubric set forth in the Book of Common Prayer at the end of the Order for the Administration of the Lord's Supper or Holy Communion shall be construed accordingly.

**Use of
Prayer Book
in Latin in
Universities
and other
places of
learning.
1662 c. 4.**

4. The right of using in Latin the Morning and Evening Prayers and other Prayers and Services prescribed in and by the Book of Common Prayer conferred by section fourteen of the Act of Uniformity 1662 upon the Universities of Oxford and Cambridge, and the Colleges of Westminster, Winchester and Eton, and on the Convocations of the Clergies of either Province, shall also be enjoyed by all other Universities and by such other places of religious and sound learning as custom doth allow or the Ordinary may permit, and the said section fourteen shall be amended accordingly by substituting for the words “ both the Universities ”, the words “ all Universities ”, and by inserting after the words “ and Eaton ”, the words “ and such other places of religious and sound learning as custom doth allow or the Ordinary may permit ”.

5. This Measure shall extend to the whole of the Provinces of Extent. Canterbury and York except the Channel Islands;

Provided that this Measure may be applied to the Channel Islands as defined in the Channel Islands (Church Legislation) Measures 1931 and 1957 or either of them, in accordance with those Measures.

6. This Measure may be cited as the Prayer Book (Miscellaneous Short title. Provisions) Measure 1965.